

25STCV20157 25STCV20157

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-22

Motion: MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 AND REQUEST FOR MONETARY SANCTIONS

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Case Number: 25STCV20157 Hearing Date: September 22, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

ISKRA LINDSEY AND ILEANA
GAITAN,

Plaintiffs,

vs.

FCA US LLC; ELK GROVE CHRYSLER
DODGE JEEP RAM; and DOES 1 through 10, inclusive

Defendants.

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CASE NO: 25STCV20157

[TENTATIVE] ORDER RE: MOTION

TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE

§ 871.26 AND REQUEST FOR MONETARY SANCTIONS

Dept. 731

September 22, 2026

8:30 a.m.

Matter No. 18

Moving Party: Plaintiffs, Iskra Lindsey and Ileana Gaitan

Opposing Party: Defendant, FCA US, LLC

Notice: OK

Background Facts

Now before the Court is Plaintiffs

Iskra Lindsey and Ileana Gaitan's opposed motion to compel further initial disclosures from and request for monetary sanctions against Defendant FCA US, LLC, which is brought pursuant to California Code of Civil Procedure section 871.26 in this lemon law action.

Motion to Compel

Further Initial Disclosures; Request for Monetary Sanctions

a. Legal
Standard

Under Code of Civil Procedure

section 871.26, which applies only to represented parties in actions filed on or after January 1, 2025, parties in civil actions seeking vehicle restitution or replacement under section 871.20 must exchange automatic initial disclosures and documents without awaiting a discovery request. (Code Civ. Proc., § 871.26, subds. (a), (f)-(i), (k)-(l).) These mutual disclosures are due within 60 days after the filing of the answer or responsive pleading, followed by a right to conduct limited two-hour initial depositions within 120 days, while all other discovery is stayed until mediation has concluded. (Code Civ. Proc., § 871.26, subds. (b)-(e).) Absent a showing of good cause, failure to comply with these requirements triggers mandatory monetary sanctions against the noncomplying party's attorney—\$1,500.00 for a plaintiff's attorney and \$2,500.00 for a defendant's attorney—with repeated noncompliance resulting in dismissal of the case for plaintiffs or severe evidentiary trial sanctions for defendants. (Code Civ. Proc., § 871.26, subds. (j)-(j)(5).)

Notably, Code of Civil Procedure

section 871.26 contains no motion-to-compel step, no compel-order prerequisite, no meet-and-confer requirement in the statute, and no separate statement requirement. (See Code Civ. Proc., § 871.26, subd. (a)-(l); cf., e.g., Cal. Rules of Court, rule 3.1345(a) [separate statement, arising in relation to discovery requests or responses thereto as opposed to discovery obligations by operation of statute].) Section 871.26 instead contains a lone cross-reference to the Discovery Act at subdivision (e), which applies only to "standard discovery" after mediation concludes, not to enforcing the initial disclosures. (Code Civ. Proc., § 871.26, subd. (e).)

This omission by the Legislature

contrasts the express authority to move for an order compelling responses provided in Code of Civil Procedure sections 2016.090 (initial disclosures), 2025.250 and 2025.480 (depositions and requests for production), and 2031.300 to 2031.320 (standalone production requests), and appears to signify a lack of express standing to move to compel initial disclosures in the same manner as these latter identified statutes. (See *People v. Trevino* (2001) 26 Cal.4th 237, 242 ["When the Legislature uses materially different language in statutory provisions addressing the same subject or related subjects, the normal inference is that the Legislature intended a difference in meaning"].)

The omission also appears to necessitate

non-ex-parte requests for relief to courts for enforcement of rights arising from Code of Civil Procedure section 871.26, subdivision (j). (Cf., e.g., *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108 [while party cannot request reconsideration based on erroneous court reasoning, a party can suggest to the court that it should reconsider its erroneous order on its own motion so long as the suggestion is not made ex parte].)

Discussion

After review, the Court finds

insufficient grounds for relief. Plaintiffs' motion is arguably moot as to the relief requested and is otherwise unmeritorious based on supplemental disclosures on June 16, 2026, a position not disputed in reply.

While the moving papers represent

that Plaintiffs met and conferred regarding deficient disclosures on June 3, 2026, with "FCA US LLC [failing to] cure[] the deficiencies in its mandatory disclosures" prior to filing this motion on June 22, 2026 (Motion, Rucker Decl., ¶¶ 4-7, Exs. 1-2), two points undermine Plaintiffs' position.

First, Plaintiffs failed to attach

the initial disclosures, for which reason the Court cannot assess the sufficiency thereof under section 871.26. (See Motion, Rucker Decl., ¶¶ 6-7, Exs. 1 [single FCA document], 2 [meet and confer letter].)

Second, FCA's opposition undermines

Plaintiffs' papers by clarifying that on June 16, 2026—six days before Plaintiffs filed their motion—FCA supplied supplemental disclosures to

Plaintiffs, which FCA contends satisfied its discovery obligations (see Opposition, Mehall Decl., ¶¶ 6-7, Ex. B), a position which is not disputed in any reply by Plaintiffs, where the record fails to reflect that Plaintiffs filed any reply prior to the hearing.

c. Conclusion

Plaintiffs Iskra Lindsey and Ileana
Gaitan motion to compel and request for monetary sanctions are accordingly
DENIED.

Plaintiffs Iskra Lindsey and Ileana
Gaitan are ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.

DATED: September 22, 2026 _____

MARK C. KIM

Judge of the
Superior Court